Role of the Fair Work Commission in the 4 yearly review of modern awards

Senior Deputy President Acton

Award modernisation overview

2008-09 — Award modernisation

2012-13 — Transitional review

2014-15 — 4 yearly review

Common issues

The common issues are:

- apprentice conditions
- annual leave
- public holidays
- award flexibility
- casual employment and part-time employment
- transitional provisions (accident pay & district allowances)
- family and domestic violence
- family friendly work arrangements
- micro business schedule

Award stage

- Stage 1 — March 2014 to mid-2015
- Stage 2 — October 2014 to late-2015
- Stage 3 — March 2015 to late-2015
- Stage 4 — March 2015 to early-2016

APTIA awards

Award title	Group
Manufacturing and Associated Industries and Occupations Award 2010	1C
Vehicle Manufacturing, Repair, Services and Retail Award 2010	1C
Passenger Vehicle Transportation Award 2010	2C
Clerks – Private Sector Award 2010	3A

Steps in award stage

1. Initial conference – scheduling
2. Parties asked to identify issues they wish to raise
3. Each award referred to single member for conference
4. Exposure draft published with directions for submissions
5. Parties to make submissions on exposure drafts
6. Parties to make submissions in reply on exposure drafts
7. Further consultation with single member or Full Bench or hearing
8. Decision or statement issued by Full Bench with determination varying award

Technical and drafting changes in exposure drafts

- Expressing rates of pay as hourly as well as weekly
- Expressing work-related allowances as monetary amounts as well as percentages
- Publishing tables of rates of pay incorporating overtime and penalty rates
- Including examples of how more complex provisions operate, e.g. breaks after overtime and penalty rates for casuals working outside ordinary hours
- Some re-wording of provisions for plain English
- Re-arranging provisions to group like provisions together, e.g. putting all provisions in relation to breaks in a single clause

Group 1A & 1B awards decision

As well as determining some changes sought by the parties, it was decided the following ‘general’ changes will be made to all awards:

- The technical and drafting changes outlined previously.
- Examples clarifying the operation of award provisions.
- An index of award facilitative provisions.

Questions